

Consumer Rights

Social Science — Economics • Chapter 5 • Chapter Summary & Study Guide for Daksh

Have you ever bought a packet of chips that was almost half empty? Or a school bag with broken zip? Or received a wrong amount in change? In every market transaction, there are sellers and buyers — and the buyer (consumer) is often weaker. This chapter explains why consumers need protection, the milestones of the **Consumer Movement in India**, the rights every consumer has under law, and how to seek redressal.

The consumer in the marketplace

We participate in the market both as **producers** (sellers of our work, goods or services) and as **consumers** (buyers). Most of the time the consumer is the weaker party because:

- Producers are few and large; consumers are many and small.
- Producers may make false claims through advertisements.
- Producers may sell **adulterated, sub-standard or unsafe** products.
- Sellers may give wrong weights, hide ingredients, charge more than printed price.
- Companies may deny responsibility after the sale (defective goods, deficient services, no after-sale support).

Notable cases: the leak of toxic gas from **Bhopal Union Carbide plant in 1984** killed thousands and left lakhs disabled — galvanising the consumer movement; the Pepsi/Coca-Cola pesticide-residue case; expired medicines, unsafe cosmetics.

How the Consumer Movement grew

The Consumer Movement, originating in dissatisfaction with unfair trade practices, took organisational shape in 1960s in India. Its biggest milestone:

- **Consumer Protection Act, 1986 (COPRA)** — passed by Parliament. It set up a three-tier consumer dispute redressal machinery and gave consumers legally enforceable rights.
- **Right to Information Act, 2005** — citizens can ask for information from public-sector providers.
- **Consumer Protection Act, 2019** — strengthened earlier law: covered e-commerce, included misleading advertisements, set up Central Consumer Protection Authority (CCPA), product liability for sellers/manufacturers.

National Consumer Day is celebrated every year on **24 December** in India — the date COPRA was passed.

Consumer rights — six guaranteed rights

Six rights of every consumer (under COPRA):

1. Right to safety - protection against goods that endanger life/health
2. Right to be informed - quality, quantity, ingredients, MFG date, price
3. Right to choose - freedom to choose among competing products
4. Right to seek redressal - go to court for unfair trade / faulty products
5. Right to represent - file complaints, be heard
6. Right to consumer education - know rights, services, channels

Practical tools and standards

- Consumers must check **labels** for ingredients, manufacturing date, expiry date, batch no., MRP, manufacturer's address. Misleading or missing information is a violation.
- **Standardisation marks** guide quality:
 - ISI mark** — for industrial goods (electrical appliances, cement, steel, cookers).
 - Agmark** — for agricultural products (spices, oils, honey, cereals).
 - Hallmark** — for gold and silver jewellery (BIS).
 - FPO** — for processed food.
 - FSSAI** — Food Safety & Standards Authority of India for packaged food.

- Demand a **cash memo / bill** for every purchase. Without it, you can't prove the transaction in case of disputes.
- **RTI** — citizens can ask any government department or public-service provider for information. Forces accountability.

Three-tier redressal system

If a consumer's rights are violated, they can approach:

- **District Consumer Disputes Redressal Forum** — for claims up to **₹1 crore** (revised limit, 2019 Act).
- **State Consumer Disputes Redressal Commission** — for claims between **₹1 crore** and **₹10 crore**.
- **National Consumer Disputes Redressal Commission** — for claims above **₹10 crore**.
- Decisions can be appealed at higher levels. Procedure is simple, low-cost; consumers may represent themselves without a lawyer.

The way forward

The consumer movement faces several challenges: most consumers are unaware of their rights; complaint processes can be slow; redressal mechanisms are stretched. Strengthening consumer awareness from school level, encouraging consumer organisations, integrating online dispute resolution, and ensuring strict implementation of laws — these are the priorities.

★ MUST-REMEMBER POINTS

- Consumer is the weaker party — producers are fewer, bigger, with information & power asymmetry.
- Bhopal gas tragedy 1984 — landmark trigger for India's consumer movement.
- COPRA 1986 — three-tier consumer redressal; replaced by Consumer Protection Act 2019.
- National Consumer Day — 24 December (date COPRA was enacted).
- Six consumer rights: safety, information, choice, redressal, representation, education.
- Quality marks: ISI (industrial), Agmark (agriculture), Hallmark (gold), FSSAI (food), FPO (processed food).
- Three-tier redressal: District (**≤ ₹1 cr**), State (**₹1-10 cr**), National (**> ₹10 cr**).

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